

A DISCUSSION BETWEEN JUNIUS SCALES, TELFORD TAYLOR, AND
DAVID RUDENSTINE*

David Rudenstine: Mr. Scales, maybe you could start by telling us about the original indictment, what you were charged with and your reaction to it.

Junius Scales: I didn't like it! In 1954, I was a very active party organizer and was what was called "underground," which meant I was as unavailable to FBI surveillance as possible. I was traveling over North Carolina, South Carolina, Virginia, Tennessee, and northern Mississippi. That was my territory. I was planning a week's visit in Memphis and I found out later from studying FBI freedom of information records that every office east of Kansas was required to report weekly, some of them daily, on whether they had any leads as to where I might be. Finally, they got word from an informer in Memphis that I was coming to Memphis. They tried to catch me before because catching me in Memphis meant giving away a perfectly good informer, but they weren't successful and so they had to wait until I came to the rendezvous. Then I was arrested and I found that the indictment had been returned that afternoon in North Wilkesboro, North Carolina. I couldn't get a copy. It was at least two weeks before I even got a copy of it. So everyone knew more about it than I did.

Rudenstine: Could you give just a real quick idea about what it means to be underground? You describe it as being able to move about without being detected by the FBI. How do you go about doing that?

Scales: Well, I had a million tricks. If I was going from New York down to Memphis, I went to Cincinnati the first day, spent the night in Cincinnati and took a Greyhound bus down to Memphis. When I got to the edge of Memphis, I got off the bus and got on a trolley. Then I got off the trolley and went through a park where the zoo was and where nobody could drive through. I then caught a bus just pulling up. I went into the middle of town, took a cab in the opposite direction, went through a large store, came out of there and went in to a movie theatre and sat in the men's room making notes until it was dark. And then I went to this rendezvous, where I was

* On March 2, 1988, Junius Scales and Telford Taylor were guests of Professor David Rudenstine at his seminar on Free Speech and National Security at the Benjamin N. Cardozo School of Law. The topic discussed was *Scales v. United States*, 367 U.S. 203 (1961). The original transcription has been edited slightly for publication. Professor Rudenstine wishes to thank Sandra L. Cobden (Cardozo 1990) for assuming the responsibility of footnoting the transcript.

supposed to be met by a white couple. That was a typical sort of day. Except when I had a long distance to travel, I would try to do it at night to save money. I would just sleep on the bus.

Telford Taylor: You had quite a line of false names, too, didn't you?

Scales: Yes. I had a system so I wouldn't use the wrong name in the wrong place. It was quite, quite elaborate, but it worked. So I changed identity every town I stayed in overnight. Anyway, otherwise, I stayed with people, usually with very careful prearrangements and a very limited number of people knowing I was coming and so on. So there was nothing very skulduggerous or dramatic about it. It was just being—making it as difficult as possible to be under surveillance, because previously, before I started this sort of thing, I would arrive at meetings with a parade of FBI agents, cars, and so on. So it really was necessary to behave that way.

Rudenstine: The day that you were arrested, what were you actually charged with?

Scales: Well, I was charged with membership in an organization advocating the violent overthrow of the government. Correct me if I get the terminology wrong, Telford. When I was arrested, I waived extradition, went back to North Carolina—

Taylor: Well, it was a little more complicated than that.

Scales: Yes.

Taylor: Paragraph 3 of the Smith Act,¹ the last clause, was called the "membership clause," and it required as a basis for conviction that you were a member of an organization which believed in violent overthrow. The "Communist Party," the name itself, didn't appear in the statute. It applied to literally any organization that believed in the violent overthrow of the government, and you had to be a member of such an organization, and you had to know that the organization had that belief. That was all. You didn't have to do anything. Simply the status of membership, plus a degree of knowledge. Now, except for about five others that were tried the same way Junius was, the bulk of the Smith Act defendants were tried under the two sections which punished advocating violent overthrow and organizing groups to bring about violent overthrow. Those were action charges, whereas Junius's was not an action charge, it was a status charge—membership plus knowledge.

Scales: Anyway, I went back to North Carolina where I was put in a brand new jail and isolated. My mother tried to get counsel for

¹ 18 U.S.C. § 2385 (1988) (Act of June 28, 1940 Ch. 439, 54 Stat. 670).

me, and I had an old friend from my high school days, who later became a congressman. He also was trying to get counsel. He felt very keenly that the Greensboro Bar should find counsel to defend me.

Taylor: Does everybody know that you were born and raised in Greensboro?

Scales: Yes, that was my hometown. I grew up there.

Rudenstine: How large a town was it at the time?

Scales: Oh, it was well over 125-130,000 and it's double that now. My father had been a very wealthy man and was quite prominent politically and socially in the town. So the problem was to get counsel, and this young man, who was a friend of my whole family, he scurried around and tried to find local counsel. The kindest thing that was being said about me was that I was crazy. And the term "nigger-lover" was quite prominently used. And probably some much stronger language, which I wasn't too sure about. Anyway, at the time he tried, he approached all kinds of prominent counsel. And because of the trial, the conspiracy trial in Foley Square under Judge Medina—

Rudenstine: That's the *Dennis* case?²

Scales: Yes. That had set a stereotype in the minds of the public because of the publicity from that almost year-long trial, that the Communists were going to get up and be obstructive and obstreperous and make speeches and generally raise hell in court. And most of the lawyers had this impression and were scared. This contributed to their fear of taking my case, although nobody was anxious to get into a case where the defendant was so unpopular. So finally, even after the most strenuous efforts, they were unable to get counsel.

Rudenstine: They were unable to?

Scales: I was unable to get local counsel at that stage, and, without my knowledge or approval, my mother posted bail, which I had argued from \$100,000 to \$35,000 in open court. I tried again to get counsel, local counsel, after I was out of prison, to no avail. Finally, I retained counsel in Washington—David Rein³ of a firm called Forer & Rein. They were very special. They were sort of—they would de-

² *Dennis v. United States*, 341 U.S. 494 (1951).

³ In his book, Scales describes Rein as a leftist sympathizer who disliked and distrusted the Communist Party. Nevertheless, during the McCarthy era, Rein and his partner, Joe Forer, represented numerous party members and other people whose political beliefs left them vulnerable to prosecution. For a further discussion of Rein and his representation of Scales through the first appeal, see J. Scales & R. Nickson, *Cause at Heart: A Former Communist Remembers* 261-81 (1987).

fend anybody that was hauled before the House Un-American Activities Committee, the Senate Investigation Subcommittee, and I think they were really quite heroic, quite a heroic pair. They were on the verge of poverty. Most of their clients couldn't pay them. But they were quite courageous and ubiquitous in every kind of case.

Rudenstine: What was the first trial like?

Scales: I wouldn't say it was a lynch mob atmosphere, but I met people on the street that I had known all my life who cut me dead. The FBI was in the courtroom and if anybody came up to speak to me, the FBI would go and check them out, you know. So it wasn't exactly a calm and cool atmosphere in the courtroom. It was quite a horrendous thing. I mean, headlines screamed every day with sensational stories.

Rudenstine: Did you, by any chance, know the judge in the first trial?

Scales: I knew the guy who should have been the judge, and that's why he bowed out of the case and they brought in a judge from Alexandria, Virginia.

Taylor: What was his name?

Scales: Albert Bryan.

Taylor: Bryan, yes.

Scales: Later his reward, I think, was to be appointed to the Court of Appeals for the Fourth Circuit. And I believe he died recently in that position.⁴ Telford will tell you—he was quite a competent judge, I think.

Taylor: Yes. He was a very competent and very conservative lawyer, which was not a good combination for Junius. That meant that he knew where he wanted to come out. He was less likely to make mistakes that would be good for a defendant on appeal.

Scales: He was an interesting man. He affected Old South manners and one morning I went to the hotel, which Telford later got acquainted with—

Taylor: The King Cotton.

Scales: —the King Cotton Hotel—to have breakfast with my lawyer and he saw me come into the dining room and he rose from his seat halfway through having breakfast and bowed from the waist. "Mr. Scales," he said. So I bowed from the waist, too, and my lawyer said that he was just putting me to the test to see if I was a proper

⁴ Judge Bryan served as a judge for the United States District Court for the Eastern District of Virginia from 1947-61. He then was appointed to the Fourth Circuit where he served from 1961-72. He died in 1984. Wash. Post, Mar. 15, 1984, at C7, col. 1.

southern gentleman. And he said, "You did very well. He thinks—he thinks—he doesn't know what it is, but he thinks you're guilty of something!" And that seemed to be the case. I remember there were two points of evidence that were interesting. One was an informant who testified that at a Party school which I had run there was a demonstration in my presence, which wasn't true. I only found out about it long after the trial was over from people who did see it. At this Party school there were a couple of women who were talking about crime in the streets and how they were afraid to go out. And so this guy wanted to show his GI training, and he gave a demonstration of judo, you know, hand chops and how you can knock somebody out with a *New York Times* folded properly, and if you put a pencil in the palm of your hand, like this, and jab, it's a dagger. So that afternoon as I was going home from court, there were extra papers out on the street and being hawked with headlines like this: "Communist School Taught Murder!" And there was another occasion when that same informant said that he had given me an article which was extremely anti-Communist and that I had told him to make a list of the names of the people that wrote it—there were three authors, I think—to make a list of them, and we would shoot them. What I really said, with considerable amusement, was, "I guess we'll just have to shoot them," or something like that, sort of like the old "Comes the revolution you'll eat strawberries and cream and like it." It was that kind of a gag, you know. Although he admitted he had never copied the names down, the newspapers from then on referred to it as "the death list." That was the death list. Anyway, that was the atmosphere of it. And the summations were raving and ranting and just absolutely unbelievable. And it took the jury, I think, an hour and twenty-five minutes, after a nine-day trial, to return a guilty verdict. The judge sentenced me the next morning so he wouldn't miss the weekend. He sentenced me to six years and he was off.

Rudenstine: It was a nine-day trial?

Scales: I think so, yes.

Rudenstine: That's very different than the trial in the *Dennis* case.⁵ I can't remember how long the second trial was.

Taylor: The second trial of Junius?

Rudenstine: Yes.

Taylor: Well, a good deal longer.

⁵ The *Dennis* trial took nine months. The record filled 16,000 pages. *Dennis*, 341 U.S. at 497.

Scales: Yeah, two weeks and a couple of days, something like that.

Taylor: Well, David Rein handled the case on appeal in the Fourth Circuit, and they affirmed the conviction. This is the point at which you made some decision to get somebody else.

Scales: Yes. The Party's national leadership felt that since my case had become the leading case on this Smith Act membership clause, that I had to get distinguished counsel of national repute.

Taylor: This is why I asked you.

Scales: So I wrote dozens of letters to prominent people, including Joseph Welch of the McCarthy-Army hearings fame⁶ and Claude Pepper,⁷ and I got very considerate responses from most of them. But refusals: they couldn't handle it, their schedules wouldn't allow it, and this and that. Welch was particularly concerned and nice, I remember. Anyway, I'd finally decided I would go on a tour of the South to see if I could get some support and also if I could find counsel there. In the process, I wandered in on the Montgomery bus boycott, which was well underway. I'd gone there to get Clifford Durr,⁸ a prominent New Dealer, to see if he would represent me.

Rudenstine: What year is this?

Scales: This was 1956.

Rudenstine: '56? Is this the Rosa Parks boycott?

Scales: Yes. The blacks of the whole city of Montgomery were mobilized to boycott the buses. Martin Luther King was leading it. And, of course, I had the distinct feeling that this was what the Communist Party had been fighting for although it hadn't been able to tap on to what would mobilize the community. And here I saw what we'd been after for decades. I couldn't have felt more irrelevant. I saw Clifford Durr, who said, "I can't take the case." He said, "I'd lose you one vote as soon as I did." Justice Black was his brother-in-

⁶ Welch served without pay as counsel to the United States Army in its dispute with Joseph McCarthy over supposed Communist infiltrators. The Army alleged that McCarthy made his accusations in a bad faith attempt to obtain a commission for his friend G. David Schine, who was facing a draft call. N.Y. Times, Sept. 1, 1954, at A1, col. 8; N.Y. Times, May 2, 1954, § 4, at A6, col. 3; N.Y. Times, Apr. 3, 1954, at A1, col. 6.

⁷ Pepper, born in 1900, was a U.S. Senator from Florida from 1936-51. His liberal ideas cost him his Senate seat in 1950. He practiced law in Florida until 1962, when he won a seat in the House. He died in 1989. N.Y. Times, May 31, 1989, at A1, col. 5.

⁸ Durr, 1899-1975, was Commissioner of the Federal Communications Commission from 1941-48. He returned to his native Montgomery, Alabama in 1954 where he was, for a time, the only lawyer in the city who would take cases brought by blacks charging civil rights violations. Durr arranged to have Rosa Parks released on bail after her historic defiance of the Montgomery ordinance requiring that blacks sit at the back of the bus. N.Y. Times, May 31, 1989, at A1, col. 5.

law. So that was the end of that. He was, incidentally, on the verge of being penniless because he was supporting the boycott. I had to take him to lunch because he was broke, stone broke. Anyway, I went to Washington from there and I approached Arthur Goldberg⁹ and Joseph Rauh.¹⁰ They dispensed with me in about thirty seconds apiece. I then called former Attorney General Francis Biddle¹¹ and told him of my situation, and he invited me out to his place and we talked. I asked him if he would take the case and he said he'd retired and had sold his law library, but if there was any case that might get him out of retirement, it would be this one. Nevertheless, he just didn't think his health was good enough and so on. He said, "Would you like me to get you a lawyer?" And I said, "I sure would." And he said, "Well, I have Telford Taylor and Joseph Rauh in mind." And I said, "You can forget Rauh. He just turned me down a half-hour ago." So he called Telford on the phone. Telford was noncommittal, but he was willing to see me.

Rudenstine: Telford, were you in New York?

Taylor: Yes.

Rudenstine: How did you know Biddle, by the way?

Taylor: Well, Biddle was the judge at Nuremberg, one of the American judges at Nuremberg.¹² I also had known him before that. I had been in the Department of Justice briefly when he was Attorney General, so I had some prior connection. But then I got to know him

⁹ Goldberg began specializing in labor law, specifically in representing labor unions, upon his graduation from Northwestern University Law School in 1929. He was General Counsel of the Congress of Industrial Organizations during their merger with the American Federation of Labor. He was President Kennedy's Secretary of Labor, an Associate Justice of the United States Supreme Court, and the United States Ambassador to the United Nations. A Reference Guide to the United States Supreme Court 290-91 (S. Elliot ed. 1986); 5 The New Encyclopedia Britannica 338 (15th ed. 1987). For a more personal view see, D. Goldberg, *A Private View of a Public Life* (1975) (biography written by Goldberg's wife which begins with his appointment to the Cabinet).

¹⁰ Rauh, born in 1911, helped found Americans for Democratic Action in 1947. Since its beginning, he has served on its board in variety of positions including national chairperson from 1955-57 and currently vice chairperson. He also worked as legal counsel to a variety of government agencies during the Roosevelt administration, served as law secretary to Justices Cardozo and Frankfurter, and, more recently, has been active in numerous political campaigns. Supplement to *Who's Who in American Politics* 284 (1989).

¹¹ Biddle, son of a prominent Philadelphia family, was a New Deal Democrat. His government positions included Chairman of the National Labor Board, United States Circuit Court Judge, Solicitor General, Attorney General, and judge at the Nuremberg trials. A liberal, he was an outspoken critic of Senator McCarthy. He also, ironically, helped President Franklin Roosevelt write the presidential approval of the Smith Act. *N.Y. Times*, Oct. 5, 1968, at A35, col. 1.

¹² Taylor was Associate Counsel and later Chief U.S. Prosecutor at the Nuremberg War Crimes Trials.

quite well at Nuremberg. He was elderly and he wasn't well. I think he would have taken the case if he could have held up to it physically. Anyhow, when he called me, I simply said that I would see Junius, which I did. And Junius came to see me with two others. I think we can't remember one of them, but they were both officials of the Communist Party, as I understand.

Rudenstine: So you were still a member of the Party?

Scales: Very enthusiastic.

Taylor: I had been approached by the Communist Party once before, just as I started to practice law after I got out of the Army, for the case involving the Hollywood Ten,¹³ who also were prosecuted for refusing to answer questions before a congressional hearing and were relying on the first amendment as the defense. They asked me to take that case, and I didn't because, after a few interviews with them, it seemed plain that they wanted me to try the case exactly the way they thought it should be tried. And, in the first place, I didn't want to go on that footing. In the second place, I was sure that the basis they were going on, which was under no circumstances could anybody ever be asked about his political affiliations, was unsound. So I didn't take it. So the first thing I was concerned about when Junius came in with these two men from the Party was whether this was going to be the same thing over again, that they had their ideas on how the case should be handled and that I was to be expected to follow up the lead, in which case that would have been the end of the matter. But no such thing was said. In fact, they made it quite clear that I was retained by Junius. I also said that I would be retained by Junius, not by the Party, though he could go where he wanted as far as fees and that sort of a thing were concerned.

Scales: Incidentally, those were the terms with David Rein, too. He wouldn't have any part of the Party trying to run the show.

Taylor: Well, in any event, there was no problem about any of that. And he seemed like a reasonably nice guy, so I decided that I'd go ahead with it. The first thing was to write a petition for certiorari and the second thing was to get it granted, which it was, and to argue it before the Court. There were two features of the case which led me to think that solid arguments could be made that this would not be governed by the *Dennis* case. Of course, *Dennis* had been decided by

¹³ *Lawson v. United States*, 176 F.2d 49 (1949), cert. denied, 339 U.S. 934 (1950). The Hollywood Ten were members of the motion picture industry who were named as Communists in testimony before the House Committee on Un-American Affairs. *N.Y. Times*, Oct. 22, 1947, at A1, col. 8. They were convicted of refusing to answer that Committee's questions about other supposed party members. Note, *Constitutional Law*, 24 *Tul. L. Rev.* 237 (1949).

this time and, therefore, whatever arguments that were to be made had to be outside its scope. In the first place, I thought a good deal could be made out of the fact that whereas in the *Dennis* case the Smith Act in question required action of one kind or another, either actual advocacy of communism or actual activity in organizing a group of some kind that could be shown to believe in violent overthrow. In contrast, Junius's indictment did not require any kind of action and was limited, as I said, to his status plus knowledge of the organization's aims. Well, Junius's case was going, as you can see, further than the previous Smith Act cases had gone. The second thing was not a constitutional argument, but a statutory argument. When the Internal Security Act¹⁴ was enacted, there was concern that it might be unconstitutional in light of the Smith Act because it required people to give their names and so forth. Since, under the Smith Act, it provided that mere membership in the Communist Party was punishable, then by requiring the person to give his name, the Internal Security Act raised fourth amendment problems—and fifth amendment problems, too. So I thought that was a strong argument. And, in fact, of the four Justices who dissented, two of them relied on that ground—Brennan and Chief Justice Warren, I believe. In any event, those were the two angles that I saw as promising to distinguish it from the *Dennis* case. And those were the things which were in the petition for certiorari and in the brief before argument that I stressed.

Now, a very knowing and clever thing was done by the Department of Justice. Incidentally, at the argument before the Supreme Court, my opponent was John Davis, who had been a classmate at the Harvard Law School and was with the Assistant Attorney General's office at that point. So I knew him very well. He later became the clerk of the Supreme Court for a number of years. Now there was a very minor feature of the case that David Rein had quite correctly figured out. There were some government witnesses in the first trial who had probably been in touch with the FBI because they had all the marks of being FBI agents. Dave had requested the prosecution to turn over to him any documents which had passed between the witness who testified against Junius and the FBI, the object being to see if there was anything here that could be used to impeach the veracity of the witnesses. If there were things in these interchanges between the witness and the FBI that didn't match with what he'd been saying about Junius, then you would have a basis for saying that his integrity was damaged. I didn't really think myself that that would make very

¹⁴ 50 U.S.C. § 781 (1982) (Act of Sept. 23, 1950, ch. 1024, 64 Stat. 987).

much difference with the jury, but it was a ground for appeal because the court refused to order the prosecution to turn over these documents. And right after the first trial, in the *Jencks* case,¹⁵ the Supreme Court held that, under those circumstances, the documents had to be turned over. So there was this flaw in the prosecution's case which had emerged after I'd made my brief and argument.

I should add that the Court set our case for reargument after I'd argued it the first time, but I thought this was terrible because the case was right there. The evidence against Junius was not strong. There was another case too. The one that came from California—

*Scales: Yates?*¹⁶

Taylor: —the *Yates* case had greatly tightened the evidence which one needed in order to secure a conviction. Junius had been tried before the *Yates* case and, therefore, the requirements of *Yates* had not been in the government's mind. And, there again, there was a strong argument that the evidence was insufficient under the standards of *Yates*.¹⁷ The government saw that too, and, therefore, they opposed the idea of having a second argument because I think they thought that, given *Yates*, we would win it if we had another argument. So they filed what they called a "Supplemental Memorandum for the United States on Reargument."¹⁸ What it basically said was, "Well, look, this case has got a flaw in it anyhow because they didn't give the lawyer for the defense copies of these things that went to the FBI from witnesses. It has to be reversed. Therefore, please reverse it now." In other words, this was an effort to stave off a reargument in which we would have had a very good basis for reversal because of deficiencies in the evidence which the *Yates* case created, and which the government thought, if they could get back to another trial, they could fill in.

Rudenstine: So this is your kind of classic confession of error by the Solicitor General?

Taylor: Yes. And, of course, I screamed bloody murder in reply to this, that it was grossly unfair, that there had been a trial, there was a record, and why should the government have a second whack at

¹⁵ *Jencks v. United States*, 353 U.S. 657 (1957).

¹⁶ *Yates v. California*, 360 U.S. 920 (1959).

¹⁷ As it turned out, Justice Stewart, who ultimately provided the fifth vote in favor of affirming *Scales*'s conviction, was troubled by whether the government's evidence in *Scales* satisfied the *Yates* requirements. See Cobden, Rogers & Rudenstine, *Imprisoned for Membership: The Junius Scales Case*, 11 *Cardozo L. Rev.* 791, 798-801 (1990).

¹⁸ Supplemental Memorandum for the United States on Reargument, *Scales v. United States*, 367 U.S. 203 (1961).

beefing up the record? I took their appeal apart, but the Court followed the government's advice and sent it back for a second trial.

Rudenstine: Well, why don't we turn to that. I take it the charge in the second trial was the same as in the first.

Taylor: That's correct.

Rudenstine: And so I wonder if you could just spend a little time discussing the evidence that was introduced by the government in the second trial. I guess it breaks down to these two main issues. One is evidence pertaining to the Party activity—its advocacy of violent overthrow of the government—and then the second major topic would be the quality of your membership—active, knowing, with specific intent or belief as later construed by Harlan's opinion.

Taylor: Right. Well, and also the statutory part.

Rudenstine: What about the first part, which has to do with proving that the Party actually was currently engaged in advocating, teaching the duty and necessity of overthrowing the government by violence. What was the evidence?

Taylor: Well, I was going to say that that came first with the government because that was exactly what they hoped to do and had to do to differentiate this case from *Yates*. In *Yates*, some of the defendants were sent back for another trial, and some of them were acquitted by the Supreme Court because the Court found that there was insufficient evidence of any incitement to unlawful conduct. Therefore, the government wanted to have this case retried in order to build up that record. There were all kinds of reasons quite outside of Junius's case. They had things coming up from that board that were set up—

Scales: Subversive Activities Control Board.¹⁹

Taylor: Subversive Activities Control Board, which was to declare the Communist Party a communist action organization. Well, how could they do that in the face of the decision of the Supreme Court in *Yates*, which said that the evidence against the Communist Party in the *Yates* case had not been enough to show an intent to use unlawful means to change the government? Therefore, these other cases also hung on remedying the hole which *Yates* had cut in the government's cloth. The result was that the first two weeks of the trial had nothing to do with Junius. His name was hardly mentioned. They brought in a lot of witnesses—there must have been a half a

¹⁹ The S.A.C.B. was established by the Internal Security Act, ch. 1024, Titel I, §§ 12, 13, 64 Stat. 987, 998-1001 (1950) (omitted as obsolete in view of the cessation of operation of the S.A.C.B. on June 30, 1973).

dozen of them at least—who had not testified in the first trial. I think you had only three in the first trial.

Scales: That's right, I think.

Taylor: Yes, outside of your own witnesses. But they brought in a witness from the state of Washington, from Denver, from all over the country who testified to Communist Party meetings in which they had been made privy to the deep dark secret that "We do believe in violence" and "Violence is necessary." Therefore, you're all going to be trained so that you can go underground, so if there was any shut-down of the Communist newspaper, here would be a thing you could make the newspaper yourselves with—not a Xerox. It wasn't in existence.

Scales: A photostat?

Taylor: In any event, that was what the government was doing for the first two weeks. It was bringing in the evidence which hadn't been there in the *Yates* case. Now, of course, the best we could do with all of that was to cross-examine as well as we could. But although we could make some headway, and indeed I think we did make a good deal of headway, because I was able, through friends, to get the transcripts of other cases in which these same people who hadn't testified against Junius before, had testified. When I could find them saying things they hadn't said or different things from before, I could impeach them. And a good many times I was able to do so.

But the trouble with the case from the standpoint of winning it before the jury was a very simple and single one. Junius, for reasons which I can well understand, would not take the stand. And the reason was that if he took the stand, under cross-examination, he would be asked not only about himself, which he was quite willing to answer, but he would have been asked about people whom he knew—some were Communists, some were not, some were only sympathizers who had given some money—and if he didn't answer those questions, he would have then gone up for contempt, which had happened to one of the defendants in the *Yates* case, who had testified and promptly did go up for contempt. She was given a great kudo by the Communist Party. Instead of it being the "Schneider case," which it would have been, they put her name up first in the Supreme Court, so it would be the *Yates* case. It was a lady named Yates who had taken this chance. And so, to pin a medal on her, they made her the named defendant when the *Yates* case went up. Well, you could impeach government witnesses to a fare-thee-well and make them sound like real bums, you know, but still the jurors said, "Well, if he says he wasn't a Communist, why didn't he get up and say so?" Well, he

didn't get up and say so for the reasons I've indicated. What I was hoping was that it would create errors of one kind or another which would be useful on appeal. And this was a case in that sense, where a very large part of handling the case had to do with—I won't say fomenting error—but giving opportunities for the judge to make errors and remembering them and objecting to them so that the record would be clear that this and that had happened.

Rudenstine: What would have been the testimony, the substance of the testimony, if you remember, that you would have given if you had to testify without fear of being put in that awful box?

Scales: You know, a few months after the first trial I felt that I should have taken the stand, gone to jail, and just been a thorn in the side of the government. But the judge had told David Rein off the record and with no other witnesses present that if any witnesses refused to answer all the questions, he was prepared to give them three years. So that was a rather strong deterrent.

Taylor: Did he say that? You never told me that.

Scales: It's just hearsay from Dave, of course.

Rudenstine: You mean after all these years, you're still learning something about this case!

Scales: Anyway, there was one significant thing I should mention and it didn't have any bearing on it legally. Between the first trial and the second trial, I had left the Party in despair and wrath after the revelations of Nikita Krushchev about Stalin's doings and—

Taylor: And some of Hungary, too, if I recall.

Scales: Yes. The thing that actually iced the cake, so to speak, was the Hungarian Revolution and the invasion of Hungary by Soviet troops and the shooting down of Hungarian workers in the streets of Budapest. So I left technically in February of 1957, but more or less at the end of '56. In fact, I told Telford that he was about to be defending an ex-Communist. I think he had suffered for his courage in defending a Communist already. I think some of his corporate clients didn't like his association with me.

Taylor: I didn't have all that many corporate clients so just losing one was bad.

Scales: Of course, this has no bearing on the case legally, the fact that I was no longer a Communist. So what my testimony would have been in the first trial—I guess there would be a sort of a wisp of martyrdom along with it, but I didn't feel that way in the second. Nor did I feel like going to jail for a lost illusion. So it's hard for me to say what I would have said, but, I think, I would have simply told what motivated me in joining the Party, which were the conditions in

the South. It was living in a society where apartheid, more or less, was part of the law and finding that I just couldn't live with it and finding that the Communist Party was the only organization that believed in complete social and political equality of black and white. So I got tremendously involved in the labor movement in North Carolina, which was a very backward state, and I worked in the textile mills for almost two years organizing textile workers. And then the war came and I volunteered right after Pearl Harbor. I would have given a biographical account and then I would have said what motivated me. At the time, you know, as far as the force and violence business, in my whole time in the Party, which was from '39 to '57, no one ever even talked of force and violence. It was something that didn't occur to us really. So I evolved my own definition of what our attitude was, which was that, assuming all the democratic channels were open to us such as the right to propagandize, educate, speak freely, and be heard—that if, after a generation or so, we couldn't make our message effective enough to be heard, we deserved to drift off the political scene. Although I repeated this on radio addresses, we couldn't find a witness who would testify to it. Well, one or two maybe, but some people had very convenient memory loss. I was on radio stations repeatedly with this same attitude and no one from the national office ever told me I was wrong. And the fact is that Marxist literature spans a long period, from, say, 1848 to 1954-55, and is replete with contradictory statements. When someone's in a revolutionary situation, like Lenin was in 1905 and 1917, it sounds pretty bloody and pretty violent. But in peaceful times, dating from the 1870s-80s-90s, it's an entirely different picture. Similarly, in the '20s and '30s, it doesn't sound violent at all and the idea of a peaceful road to socialism, mainly through the economic collapse of capitalism, was quite equally prominent. So these trials tended to be trials of books being identified by witnesses, and you could read, until the jury was fast asleep, contradictory points of view with each sounding just as convincing as the other. My testimony would have included some of what I've been saying.

Taylor: And how far would you have gotten in saying all that before you would be asked, "Do you know X-Y-Z? Do you think he was a member of the Communist Party?" And you would not answer and probably not ever get a chance to say the rest.

Scales: That's true. They would have started early on. And, of course, this tactic not only prevented me from testifying, but it also meant that I couldn't get any witnesses, almost no witnesses except members of the Party. Even if they weren't members of the Party and

were just friends—there were many cases like that—a lot of them were academics who would lose their chances of a livelihood or an academic career. So getting witnesses was just an unbelievable chore. There were some remarkable cases of really heroic offers. In the first trial there was a guy who had long since left the Party, was very hostile to the Party by then, but personally was a good friend—he still is—and he was very much concerned. He said, “I’ve talked it over with my wife and we can manage if I get a six months contempt sentence, but would it be possible for your defense committee to supplement our income—my wife’s income, if the sentence is longer?” He was prepared to testify to my views on force and violence. We’d shared a house for six months. He was certainly qualified and was very articulate.²⁰ Then in the second trial one of the principal Party leaders²¹ who had just left the Party went to Telford and told him, “Don’t tell Scales, but,” he says, “I was present at a meeting in North Carolina where someone did advocate preparing for force and violence and Scales proceeded to have him expelled from the Party.” And he said, “And don’t tell him, because he’ll say no, but I’m perfectly prepared to testify to that.” At the close of the trial, however, Telford decided not to use him because he would undoubtedly get a contempt sentence thrown at him. And this was the sort of problem with getting witnesses. He would have been asked similar questions.

Rudenstine: That would mean, from a more technical point of view, the evidence that was not given to some extent bore on the issue of Mr. Scales’s specific intent to bring about revolution as that issue is parsed out by Harlan in his opinion.

Taylor: Well, that’s right. The government did, on paper and with the jury, and, alas, with Justice Harlan, make a record that from the—what was that guy’s name from—the big cigar—who testified against you?

Scales: Oh, John Lautner,²² was it?

Taylor: No. No.

Scales: A local?

Taylor: Yes, a local guy.

Scales: Oh, Clontz.²³

²⁰ The friend was Hans Freistadt. See J. Scales & R. Nickson, *supra* note 3, at 212, 260-61 (1987).

²¹ The national party leader was John Gates, editor of *The Daily Worker*. *Id.* at 324.

²² For a discussion of Lautner and his testimony during the trials, see *Scales*, 367 U.S. 203, 234-36 (1961); J. Scales & R. Nickson, *supra* note 3, at 268-71, 329-30.

²³ For a discussion of Ralph Clontz and his testimony at Scales’s two trials, see *Scales*, 367 U.S. at 244-49; J. Scales & R. Nickson, *supra* note 3, at 271-73, 331-33.

Taylor: Clontz, yes. He was an FBI agent and joined the Party for the purpose of getting dirt on Junius that he could testify to. And he testified that Junius had a very strong belief that it might come to a point where force and violence would have to be used. And there was another witness²⁴ who brought in this business with the pencil. I was astonished that Harlan, for whom I had great admiration, would take seriously this pencil business, you know. I could understand there might be testimony about what Junius thought and felt and he might have been at times of a mind that "We may have to get violent," but the idea that a casual remark about using a pencil as a weapon when you're talking about a potential for revolutionary force and violence—you know, you can't do that with a pencil. It takes more than that. But, anyhow, times were different then, I hope. And, therefore, they were able to get in testimony which couldn't be directly refuted, because Junius was really the only one that could and he couldn't and wouldn't testify. It's not that we urged him to because it was quite plain that it would have been a futile thing.

Rudenstine: What's your memory of the atmosphere of the trial?

Taylor: Well, I don't know that mine was characteristic. I had never been south of Alexandria, Virginia when I went down to North Carolina. I had been in Europe a great deal. I'd been in the war. I'd stayed on afterwards at Nuremberg. I'd spent essentially seven years in Europe, but, you know, I'd become entirely accustomed to going to strange foreign countries before I went to North Carolina. So this was too much. I didn't know what was going to happen. And the whole business the first few days before Mac Smith²⁵ came into it, when I had to get off some papers to the court and I had to go and get a public stenographer and the other hotel, it was all very lonely for a while. And then Mac Smith agreed to take it on the basis that we would divy it up. I mean, there were obviously some things that he could do very much better than I could. He was a day-by-day courtroom lawyer, which I wasn't, and he knew people and he was a Southerner. I mean, he was part of the thing there. And I think for a guy to come sailing down from New York with a Massachusetts or New York accent to a small city like that was about the worst thing you could do from the standpoint of the jury or even from the standpoint of the judge. So, in any event, it made a lot of difference, and

²⁴ The witness was Charles Childs. See *Scales*, 367 U.S. at 249-51; J. Scales & R. Nickson, *supra* note 3, at 273-76.

²⁵ McNeil (Mac) Smith was a local trial lawyer from Greensboro, North Carolina who agreed to join Taylor as part of the defense team for Scales's second trial and later for his appeal. See J. Scales & R. Nickson, *supra* note 3, at 323-24.

the resources of his office were made available. Once that was done, why, then everything opened up for me in Greensboro. I was invited out to play tennis. I went to dinner, all this, and it became very, very good that way.

Scales: He was a smashing social success.

Taylor: Can't you get me for another case?

Scales: Unfinished business.

Taylor: But, anyhow, in the courtroom, this did not prevail. The government lawyers that came down from Washington regarded both Mac Smith and me as very dangerous, very dangerous types. And the newspapers down there, with one exception, as I recall, were also very hostile. What they wrote was hostile and they didn't come around. They didn't want to talk the way you like to talk with the press. So the atmosphere in the courtroom was certainly very icy even though outside, in the evening, it was very pleasant indeed. And I knew enough about the judge, Judge Bryan. He was an able judge, but he was also very good at handling juries to get across to them, without doing anything wrong that you could pitch on, you know, the way he was feeling about it. It permeated to them and it made a lot of difference.

Rudenstine: Was he able to?

Taylor: Oh, yes.

Scales: In the second trial, he wasn't bowing from the waist; he would just nod when he met me. I had slipped considerably.

Rudenstine: How long was the jury out?

Scales: An hour and nineteen minutes, six minutes less than the first trial.

Taylor: Well, the same thing then happened with the Court of Appeals, which was no surprise. And we got certiorari granted without any difficulty, and then the case was argued twice more. I argued it once and the Solicitor General argued against me that time. And then a year lapsed—

Rudenstine: Was that right?

Taylor: Yes, a year elapsed with no decision. And I began to wonder whether the Court wasn't hog-tied. You know, you can get a case where you've got three possible outcomes. Say you have three judges that want to affirm the conviction. You have three judges that want to reverse and order a dismissal. You have three judges that want to reverse, but only on a ground which will lead to another trial. I mean, the judgment—it's, after all, the judgment and not the opinion that determines whether you can get a dismissal—if the Court can't get a majority to write a judgment, you can't get it. It would be

exactly the same thing as a 4-4 decision that would sustain the court below, which, of course, was no good for us. But it wasn't that. It's quite plain that they were very closely divided on the case. And then what was happening was that the other case that came up from the board.

Scales: Yes. *Noto*.²⁶

Taylor: That was a membership case also. The other one I'm talking about is—

Rudenstine: Is that the *SACB* case?²⁷

Taylor: Yes, the *SACB* case. That was coming up, and the Court ordered reargument to be heard together with the *SACB* case and the *Noto* case. And they also gave us a list of questions to be answered and dealt with on the—on the reargument.

Rudenstine: And this was approximately what? About a year after the first—

Taylor: I think it was getting to be more than a year, yes. I have somewhere the list of things that had to be dealt with. I can't put my hands on it now, but most of them dealt with various alternatives and whether the "clear and present danger" rule would be applicable or not in situations A, B, C, D, and E. So, of course, we had to deal with that. It was my third argument of the case, the second time on the second trial.

Rudenstine: What about your general strategy this time around? Were you counting votes? Were you trying to parse out how it would go? And then did you either shape or tone down or beef up different aspects of the argument in the hopes of trying to put together a majority?²⁸

Taylor: Well, it was obviously going to be very close. I figured that we were better off as time had gone on because of the coming of Brennan and Warren. Black and Douglas had dissented in the *Dennis* case, and if they dissented there, they were bound to dissent here. Brennan and Warren had not made, at that point, as much of a track record on the first amendment as they had later on, but there was enough that had been coming from them. So I thought there was good hope of getting them. And, as you see, though, they said nothing about the constitutional end of it. They based it entirely on an

²⁶ *Noto v. United States*, 367 U.S. 290 (1961).

²⁷ *Communist Party of the United States v. Subversive Activities Control Board*, 367 U.S. 1 (1961).

²⁸ To assist the continuity of this discussion, this question and Professor Taylor's response were moved here. Professor Rudenstine's follow-up question was then added to make the transition back to the original text. —*The Editors*

interpretation of the Internal Security Act. Beyond that, I knew it was going to be tough sledding to get another vote and my main effort was to try to write a plausible distinction of the Smith Act. And, furthermore, I put a great deal more hope on the statutory thing because it seemed so clear that the purpose of that provision had been precisely to prevent people from taking advantage of the privilege against self-incrimination under these other statutes. If they were going to limit the statute with regards to the Smith Act, they were just building up the likelihood that the privilege against self-incrimination would work, as it did in the three years thereafter. It seemed to me so clear that the purpose of it was not to be limited to what they called a "bare membership," where you were nothing but a member who happened to have never done anything. And it also seemed to me that their efforts to warp the plain purpose of that provision were so transparent that the Court would see through it. But, anyhow, that's the best I could say. Those were the things that I stressed because I thought that the statutory argument might well be swallowed by members who were very worried about Communism and didn't want to be cutting back on that, whereas if they saw it coming, then if we didn't give a broad interpretation of this, a lot of guys would be flying out of jail because of the fifth amendment—they would see a reason for them to go that way.

Rudenstine: So how did your oral argument go?

Taylor: The Court was, I felt, much more prickly than it was the first time which I attributed to the fact they must have been arguing among themselves and there were stiff relations on this case, because Justice Frankfurter, who was an old, old friend of mine—I'd studied under him when he was a professor at Harvard. He had sent me to a judge to be a clerk and all of that. And I had extremely good relations with him, but he was very, very cold on the argument, as was Harlan. And so I felt that we were in bad shape after the argument, and I was not surprised when we lost. The Court had decided that the conviction was sustainable only because it contained the various elements. It contained the element that he was an active member of the Party, for one thing. And then there was another thing in the Supreme Court's opinion that also had to be fulfilled. Well, immediately after cases started coming up from the board, and then came cases under the Internal Security Act involving whether you were working in a factory that made materials, secret materials, certain kinds of materials, or if you were trying to get a passport—those cases all went against the government because they didn't contain the elements the court required in order to sustain Junius's conviction.

These elements put an end to any further cases under the Smith Act. There were no more cases under the Internal Security Act. There were no more cases under the statute of 1954, what was called Communist Control Act. Because in order to sustain the conviction, these additional necessary elements had been read in by the Court in Harlan's opinion and the statutes involving these other things didn't have those two elements there, so one after another I saw these other cases tumbling and the government losing one after the other, after the other, and all in order to convict Junius by putting these necessary elements in. So I was very pleased with all that.

Scales: I see it served some purpose.

Rudenstine: Were there any other cases under the Smith Act, not under the membership clause, or the conspiracy clause, or the organizing clause, but under the speech clause?

Taylor: I don't think so. There was one case that continued after it. It was the case in Denver, and it was tried three times. And every time the government made some boo-boo, that led to it being reversed in the circuit court. And then the government finally dropped it.²⁹ So your answer is: that case did continue a while, but it never came to fruition and the Smith Act hasn't been used as far as I know since that.

Scales: I know I'd been imprisoned for three months when the last indictment was dropped under the membership clause. I was a most anachronistic prisoner because everybody'd forgotten about the Smith Act. I'd been out of the Party for almost five years, and the Party was sabotaging my efforts to raise money. Here I was sitting in the clink and it was either Telford or Mac Smith who told my wife, "You know, if the Court ruled now, we'd probably win 6 to 3 instead of losing 5 to 4." This was just a few months later.

Taylor: I think, in all probability, if we had come up two years later, after Frankfurter had left the court and Goldberg had come on it, then it would have swung it.

²⁹ See *Bary v. United States*, 248 F.2d 201 (10th Cir. 1957), later proceeding, 292 F.2d 53 (10th Cir. 1961). The defendants in *Bary* were charged with conspiring to advocate the overthrow of the government and to organize or help to organize the Communist Party. 248 F.2d at 205. On their first appeal, the court reversed all the defendants' convictions because the statute of limitations had expired on the organizing charge. 248 F.2d 201. On their second appeal, the court reversed all the defendants' convictions because the district court had failed to determine whether the government was required to produce numerous documents in their custody that had been requested by the defendants. 292 F.2d 53. Although the district court decisions are unreported, Professor Taylor recalls that the government unsuccessfully attempted to prosecute the defendants one last time.

Rudenstine: Let's just play with this for a moment. The vote was 5 to 4 and you had Brennan and Warren—

Taylor: On the statutory ground.

Rudenstine: To some extent, though, the position is that since Harlan had imposed such tough restraints, there wasn't much viability left for further prosecutions. Yet, he could have imposed those restraints and still have concluded that the evidence was inadequate here.

Taylor: He could have, but he didn't. The *Noto* case was a real sport. The reason that case went the other way was because it had been tried before the *Yates* case. So the evidence that was submitted in the *Noto* case was just as flimsy as the evidence in the *Yates* case. Yet it came up in the Supreme Court later. It came from Buffalo through the Second Circuit, and why it took so long, I don't know, but the trial took place before *Yates* and, therefore, the government had not been able to send in the additional troops that they sent in in Junius's second trial to fill up those gaps.

Rudenstine: Was the evidence in the second trial, from the government's point of view, much stronger than the evidence in the first trial?

Taylor: Well, the evidence, in terms of establishing that the Party favored force and violence, was very much reinforced. You might or might not believe it, but that's another matter. But the evidence did come in from these additional witnesses referring to meetings of the Party. That was the problem in the *Yates* case, quite apart from what it held about the individual defendants, that the evidence about the Party had not been enough. The government, in trying that case, had been too confident in simply showing that a guy being in the Party was enough to get him. But if the Party itself wasn't an organization that believed in inciting force and violence, why, that was the end of it, of course. You couldn't get a Smith Act conviction until they had got enough in about the Party.

Rudenstine: So after the conviction was affirmed by the Court, you went to prison?

Scales: Well, of course, this trial was in '58. I didn't go to jail until the fall of '61.

Taylor: Because it took all that time to go through the court of appeals and through two arguments at the Supreme Court.

Rudenstine: And how much time did you serve?

Scales: Fifteen months.

Rudenstine: Were you released on parole?

Scales: No. There was quite a movement. Norman Thomas,³⁰ Jimmy Wechsler,³¹ the editor of *The New York Post* at the time, and Reinhold Niebuhr³² of the Union Theological Seminary—

Rudenstine: Wasn't Robert Goheen³³ also active on your behalf?

Scales: Yes. He was President of Princeton at that time. But Norman Thomas was the mobilizer and he got the most amazing collection of people, including W.H. Auden³⁴ and Martin Luther King³⁵ and just an extraordinary collection of people, and the pressure got to be considerable on the Justice Department and Robert Kennedy, and, finally, he decided this was not good for the administration.

Taylor: Commutation of sentence.

Scales: Yes, and he arranged it with his brother and I got out on Christmas Eve of 1962. By that time I'd been out of the Party almost

³⁰ Thomas, 1884-1968, was President and Spokesperson of the American Socialist Party. He ran for President of the United States six times on the Socialist ticket. He abhorred violence and opposed Communism, both in theory and as practiced in the Soviet Union. Many of his early proposals became law under the New Deal. N.Y. Times, Dec. 20, 1968, at A1, col. 2.

³¹ Wechsler, 1915-83, was editor of the editorial page and a columnist for *The New York Post* from 1961-80. One of the first prominent journalists to criticize Senator McCarthy's tactics, Wechsler in turn became one of the first to be subject to them. McCarthy and his supporters denounced Wechsler as a Communist based on a brief involvement he had with the Party as a young man. By the late 1930s, however, Wechsler was characterized more as an anti-Communist liberal than a Communist sympathizer. In addition to his work as a journalist, Wechsler was also the author of several books including *Revolt on the Campus* (1935) and *Reflections of a Middle-Aged Editor* (1960). N.Y. Times, Sept. 12, 1983, at D13, col. 1.

³² Niebuhr, 1892-1971, was an eminent Protestant theologian with wide influence in the world of religion and politics. He was a philosopher of ethics who applied his beliefs to common moral predicaments, and a political liberal who advocated "liberal realism." Among his many mentors were members of the Democratic Party brain trust in the 1950s and 1960s. He was a member of the Socialist Party for a time, and then Vice Chairman of the Liberal Party of New York. He was a professor at Barnard College and the Union Theological Seminary. His writings appear in the most diverse publications, and his books are too numerous to mention here. N.Y. Times, Jun. 2, 1972, at A1, col. 3; see also R. Stone, Reinhold Niebuhr: Prophet to Politicians (1972).

³³ Goheen, born 1919, is a noted American scholar and educator who holds honorary degrees from 26 universities. He was President of Princeton University, 1957-72, and United States Ambassador to India, his birthplace, from 1977-80. He is currently a fellow at the Woodrow Wilson School. His published works include *The Imagery of Sophocles' Antigone* (1951) and *The Human Nature of a University* (1969). Supplement to *Who's Who in America* 436 (1989).

³⁴ Auden, 1907-73, was considered the foremost English poet of his generation. He won the Pulitzer Prize in 1948, and was widely considered to have failed to become Poete Laureate of England only because he chose to acquire American citizenship in 1946. Among his best known poems are: *September 1, 1939*, *Musée des Beaux Arts*, and *In Memory of W.B. Yeats*. N.Y. Times, Sep. 30, 1973, at A1, col. 6.

³⁵ King, 1929-1968, was the principal leader of the civil rights movement in the United States. As head of the Southern Christian Leadership Conference, he promoted the use of nonviolent tactics to achieve social reform. In addition to receiving numerous awards and honorary degrees, King was awarded the Nobel Peace Prize in 1964. N.Y. Times, Apr. 5, 1968, at 25, cols. 1, 3.

six years. I suppose it was while I was in prison, Telford and Mac went to the Justice Department trying to negotiate a reduction of sentence and Deputy Attorney General Katzenbach told Mac that, "Oh, he can be out in a matter of days if he'll just name names. It doesn't have to be anybody we don't know about. Just name names." In other words, sort of go through a ritual of degradation. McNeill Smith traveled all the way to Lewisburg, to the penitentiary, to tell me this lovely offer. I said I'd rot first, and then we had a lovely dinner. But that was the situation the whole time, that all I had to do was go through the ritual of naming names and I could be out in a matter of days.

Rudenstine: Katzenbach was what—Deputy Attorney General?

Taylor: Yes. I saw him, too, not with McNeill Smith, but separately, and I was not privy to this development. I was trying to make just general arguments. And, of course, it was anomalous that the leaders of the Party had gotten the five years because there was a statutory limit at that point. And so they got five years. He's the only one that got six. Furthermore, I hate to run you down, Junius, but you were a wretched Communist compared to the others.

Scales: That's right. I was simply a regional party worker.

Taylor: Yes, and therefore it seemed to me that it was out of all relation to the sentences that had been given to the others. And that, he did see. He acknowledged that. He was not cordial with me at all and most of the arguments he was very antagonistic about, but that one he did acknowledge. And I have little doubt that he spoke to the Attorney General about it outside.

Rudenstine: So we managed to get through all this without hearing from any of the students. So if any of you have questions, why don't we hear from you now?

Student: Professor Taylor, when you wrote your petition to the Court, did you frame the questions in the order in which they were dealt with by the Court?

Taylor: The order of the questions—this is the Brief for the Petitioner. The first question was whether the membership clause of the Smith Act on its face is unconstitutional under the first and fifth amendments of the Constitution. And the gist of it was the constitutional deficiency of the membership clause. This was basically that it didn't require any action at all, it was much more limited than the other provisions in the Smith Act. Two, as applied in this case, the membership clause in the Smith Act is unconstitutional under the first, fifth, and sixth, amendments. Then three was the 4(f), the section of the Internal Security Act. And fourth was the evidence was

insufficient to support Petitioner's conviction. And five was Petitioner was denied a fair trial.

Student: Mr. Scales, you started out as a layperson and a somewhat average citizen before you got entangled in all of this. Did you have any feeling then, or do you have any feeling now about whether it is right for government to make it a crime for people to simply set forth the proposition of violence to overthrow the government, and did you then and do you now distinguish that from actually doing something to incite that violence?

Scales: Well, I've changed my mind on a lot of things, but I've never, never had the slightest wavering about the injustice or the unconstitutionality of the law, such as I've already described. It just seemed so preposterous. I remember just hearing, Telford and John Abt³⁶ arguing back-to-back in the Supreme Court, and the logic and the power of their argument was just overwhelming. And they were up against very able opponents. And I remember John Abt followed Telford Taylor.

Taylor: He was arguing the *SACB* case.

Scales: And I said to him, I said, "John, I don't see how they can sustain this conviction after this." And he looked at me very wearily and he said, "Junius, we can argue rings around these bums, but," he says, "it's the votes that count." And, of course, that's what it was. And those were still times of a great deal of—I don't know if you could call it hysteria—but the spirit of McCarthyism was still riding very high at that time.

Taylor: The Supreme Court had taken a lot of flack from Congress after the *Yates* decision came down. I don't think any of them would have acknowledged that it was the fear which was moving them, but you can't get around the fact because the Supreme Court likes to stay put and not to get into too bad shape with Congress. And the reaction to their reversing the convictions of the defendants in the *Yates* case was very marked. They did pass some legislation to try to overturn one or two of the grounds of the *Yates* case. That was still going into the early '60s.

Rudenstine: But I gather your impression is that the government must have put a lot of weight on your case because the same day that the Court affirmed your case they reversed the *Noto* case? And so the

³⁶ Abt, a graduate of the University of Chicago Law School, worked in the Agricultural Adjustment Administration and the Works Progress Administration during the New Deal. He resigned government work to become counsel for the LaFollette Civil Liberties Committee. He was a left-wing union organizer and served as General Counsel of the Wallace-for-President Committee. *New Republic*, Jul. 26, 1948, at 15.

Court was still willing to follow *Yates* to some extent. They could have followed the *Yates* and *Noto* model in your case, that the evidence was insufficient to convict. But I guess the message is in part that the Court, or at least five members of the Court, thought the Justice Department had a lot at stake in having your conviction affirmed, right?

Taylor: Oh, I think that's true, but I think you also have to take into account that, generally speaking, the Court doesn't like to overturn things on evidentiary grounds. The *Yates* case was quite unusual in the degree to which Harlan parsed the evidence and added it up. Usually that's why I put that point last in the brief, because ordinarily to go to the Court and ask them to read a hell of a big long record and then carefully parse it through is not the thing they do best up there. Sometimes they have to, but I think that a number of members of the Court thought, well, this had been through the court of appeals, they'd unanimously affirmed it, "Why should we go through this record and come to a different conclusion? We could just as likely be wrong on it as they would be. That's not our game."

Student: Did you say something that made Justice Frankfurter mad at you?

Rudenstine: You did indicate he was very cold and unfriendly?

Taylor: I don't think I said anything that made him madder at me than the fact that I was in that situation. He wasn't mad at me really. I had pleasant talks with him after it, but anybody can get hot under the collar, even with somebody they like very much, when they're in a close argument on the thing where they both feel strongly. And I think that's all there was to it.

Student: What was most troublesome about this case is that afterwards we're left with this almost meaningless distinction between active and passive member. When you argued the case, did you seriously challenge this distinction and say to the Court, "Well, what's this going to do in terms of future cases?"

Taylor: Well, you're not now talking about the statutory construction of 4(f), I gather. You're talking about the statutory construction of the Smith Act itself?

Student: Right.

Taylor: Well, the government was trying to construe that so the Smith Act would apply only to people who were active. There was nothing that said that in the Smith Act and, in fact, by ordinary canons of interpretation the government's construction was just going the wrong way, because membership is tied up with affiliation, which is a lesser degree of connection. Therefore, the implication was that

anybody who was a member would be covered by the clause. But, no, they said, it's only to cover active members. And my argument there was basically this was crazy—well, I didn't say "crazy." But I did argue strongly that this was exactly the reverse of what ought to have been the interpretation, which was that it was intended to be broad. And that was the argument that I used mostly, yes. I did try to make a little headway on the business with the pencil, but I didn't see any friendly looks.

Student: Are you an absolutist on free speech? Do you think that people ought to have the right to say absolutely anything under the first amendment, or do you draw a line somewhere?

Taylor: No. I've forgotten what the name of the British judge was who said something like, "Before I could decide a question like that, I would need to know the metes and bounds of the facts surrounding it." He said it much better than that. I can't remember his exact words, but where would I draw "the line"? I don't think there is any "line." There are all kinds of different situations. It's the circumstances and background that tend to mold your opinion on these things. I suppose, since I get involved with clients and law cases, I tend to think of things in terms of the possible. And my reaction, for example, if it's the Hollywood Ten and they came to me wanting me to take the position that there was no circumstance ever in which you could be required to answer a political question for a congressional committee, I don't know whether, if there weren't courts and decisions and clients, exactly how I would feel about that. But my immediate reaction is, "Well, for God's sake, you'll never be able to win the case that way." I don't often enough sit down and think, "Well, if I didn't have to worry about this client and that kind of situation, would I still say the same thing?" I don't know. There's too much to think about in this world, and so I have to leave it there.

Student: Mr. Scales, I'm curious about how prison officials and other inmates treated you. Were you treated as a wild-eyed radical Communist? Were you treated with respect? Was there disdain for you? What were their feelings? Did they take any action toward you?

Scales: In general, the prison administration was very hostile and made life as difficult as possible. But the word got around that I was in because I wouldn't rat on my gang, so to speak. And those that read papers were aware of that and were very respectful and helpful, yes. And the Mafia, which was the largest organized group in prison, they saved my life—a quite odd circumstance. I met sort of a Mafia prince who was moaning about how just being Italian and you had a drug conviction, you were dead, you got the book. And I said, "Well,

you know, it takes a long time for ideas, new ideas to penetrate the judiciary. Why don't you get your lawyers to read Daniel Bell's *End of Ideology*?"³⁷ It had just come out at that time. I described a chapter, which was one of the most unfortunate chapters of that brilliant book, in which Bell explained that the Mafia is really used as an excuse for unsolved crimes and that the Mafia really exists only in Sicily and so on. And he was so delighted to hear this that he went and he got dozens of copies of the book, made his lawyers read it. When he showed up in Lewisburg some months later, he required all of his considerable gang to read that chapter. If they couldn't read, somebody had to read it to them. And this gave me a very preferred status with the Mafia, because when he left to go to trial, he introduced me to every one of the Mafia—about 125-150 people—it was quite a gang. He said, "This here is Scales. He's the guy what put me onto the book." Later, I was faced with a sexual attack in prison from a guy who was going to carve me up if I didn't agree, and I was going around with a razor blade taped to my finger and a Band-Aid over it, expecting to be killed any time. Yet they were taking such good care of me that suddenly the guy who was stalking me started running from me. And I was naive enough not to figure out what was going on. The Mafia head, who made it a point, every four or five weeks, to have a confab to see if anything was bothering me and how I was doing. He knew more about what was going on around me than I did. And so he stopped me a day or so after this incident—he had a beaming smile on his face—and he said, "Anything bothering you?" And I said, "Well, not anymore." And I then said, "Maybe you better tell me." So he said, "Nothing to worry about. Everything is fine." I also had some threat from about four American Nazis, but apparently he was aware of that. I handled that myself, but he was aware of that. He knew everything that I was into.

Taylor: I think you should also tell those gathered here that you taught almost all the prisoners there to enjoy opera.

Scales: That's right. Well, that kept me sane. Like Telford, I'm very fond of music and I had some records of opera excerpts in prison. So I'd take an individual opera and spend hours preparing, you know, taking into account an attention span of about three minutes. And since sloppiness and not giving a damn was the general attitude in prison, such preparation was quite distinctive. I acted like I was preparing a seminar for a graduate class and I tried to make it very entertaining, hammed it up a good bit. I had a tremendous audi-

³⁷ D. Bell, *End of Ideology: On the Exhaustion of Political Ideas in the Fifties* (rev. ed. 1988).

ence finally. It grew considerably. And on the night before Christmas Eve—the last night I spent in Lewisburg—I did a performance of Handel's "Messiah," and gave them a brief introduction and then would just read the text of each aria, chorus, and so on. And it was a tremendously moving experience. These people had never heard "Messiah," but there was incredible emotion during the thing. And at the Hallelujah Chorus they all stood up and—the next morning at breakfast I was greeted as "Reverend Scales."

Taylor: You'll make everybody want to go to jail!

Rudenstine: Only if he's going to be there!

Scales: I don't recommend it. Unmitigated horror—or slightly mitigated.

Rudenstine: Mr. Scales, you were convicted. As an American citizen who participated in peaceful political activities, where does that leave you relative to your emotional feelings about your country, your Constitution, your government?³⁸

Scales: I seem to be an odd one to be defending the American judicial system, but I do very strongly. I feel that justice can be miscarried, and often is, but I don't know of a better rationale to living together than the rule of law. And I think the system of laws that we've built are among the great achievements of Western man. I don't feel bitter about it really. It was a terrible, terrible ordeal, and it certainly has changed my life and caused my family a lot of suffering, as well as me. But it's the sort of thing that can happen during times when people's minds are skewed because of pressures. My own judgment, I think, was skewed in the late '30s, when I joined the Party, but it was under the pressure of a system I just found intolerable—not only the poverty, but, most acutely, the racism that was ensconced in the law. Those were the days of "white" and "colored" drinking fountains, restrooms, et cetera. And it was something that I found I couldn't live with. So I think it was sort of a desperate measure that I turned to the Communist Party. But also it was for the equality of people. I don't regret the struggle against racism and the part that we, the Party, played in the South as a precursor to the Civil Rights Movement of the '50s and '60s. I think it was probably worthwhile, you know. And I feel very much at peace with the country, even though I still can't vote—as a convicted felon.

³⁸ This question and Mr. Scales's answer were moved here because they provided what we thought was a fitting conclusion for this discussion.—*The Editors*